

MODULE-4

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Definition of Intellectual Property Rights (IPR):

Legal rights granted to creators/owners of intellectual property (IP) to control the use of their creations.

Types of IP:

Includes inventions, literary and artistic works, designs, symbols, names and images.

Purpose of IPR:

To provide creators exclusive control, recognition and financial benefits from their creations.

Role of IPR: Promotes creativity, innovation and economic growth.

Significance of Intellectual Property Rights (IPR)

- **Encouragement of Innovation**
- **Economic Growth**
- **Legal Protection for Creators**
- **Fair Competition**

Challenges in Intellectual Property Rights

➤ **Piracy and Counterfeiting**

➤ **High Costs**

➤ **Global Enforcement**

➤ **Balancing Public and Private Interests**

Introduction to Intellectual Property Rights (IPR)

- **Intellectual Property Rights (IPR) refer to legal protections for creations of the mind.**
- **IPRs allow creators to control the use, distribution and sale of their inventions, designs and works of art.**
- **These rights encourage innovation, creativity and economic growth.**

Types of Intellectual Property Rights

- **Patents**
- **Trademarks**
- **Copyrights**
- **Trade Secrets**
- **Industrial Designs**
- **Geographical Indications**

i. Patents

Patents provide exclusive rights to inventors for new, non-obvious and useful inventions.

Typically 20 years from the filing date.

Types of Patents

- **Utility Patents**
- **Design Patents**
- **Plant Patents**

Significance of Patents

- **Encourages R&D**
- **Protection**
- **Promotes Advancement**

Trademark

What is a Trademark?

A trademark is a distinctive sign, symbol, logo, word or phrase that identifies and distinguishes products or services. Trademarks build brand recognition and protect a brand's goodwill.

Trademarks can include:

Brand names

Slogans

Logos

Colors

Sounds

Types of Trademarks

- ☐ **Word Marks**
- ☐ **Design Marks**
- ☐ **Sound Marks**
- ☐ **Service Marks**

Significance of Trademarks

- **Protect a company's brand identity and reputation.**
- **Help consumers identify the source of goods and services.**
- **Prevent competitors from using confusingly similar signs.**

Copyright

What is Copyright?

- ❑ Copyright protects original works of authorship from being reproduced, distributed or performed without permission.**
- ❑ Protection arises automatically when an original work is fixed in a tangible medium (e.g., books, software, films).**

Types of Works Protected by Copyright

- ☐ Literary Works**
- ☐ Artistic Works**
- ☐ Audio-visual Works**

Significance of Copyright

- ☐ Protects the creator's rights to reproduce, distribute, perform and display their work.**
- ☐ Encourages creativity and cultural development by enabling creators to benefit from their work.**
- ☐ Prevents plagiarism and unauthorized use of creative works.**

Trade Secret

What is a Trade Secret?

- **A trade secret is confidential information that gives a business a competitive edge.**
- **Unlike patents, trade secrets do not require registration and can be protected indefinitely as long as confidentiality is maintained.**
- **Examples include formulas, processes and business strategies.**

Types of Trade Secrets

- ☐ **Formulas**
- ☐ **Processes**
- ☐ **Business Strategies**

Significance of Trade Secrets

- ❑ Protect valuable business information without public disclosure.**
- ❑ Provide long-term protection as long as secrecy is maintained.**
- ❑ Encourage innovation and development of unique processes to promote competition.**

Industrial Designs Rights

What are Design Rights?

- ❑ Design rights protect the **unique appearance** of a product, focusing on its **aesthetic qualities** (shape, pattern, configuration, ornamentation).**
- ❑ Unlike patents, which protect functionality, design rights emphasize visual design.**
- ❑ Provide exclusive rights to prevent others from copying the design.**

Types of Design Rights

- **Registered Designs**
- **Unregistered Designs**

Significance of Design Rights

- ❑ Encourage innovation in product design by protecting a company's visual identity.**
- ❑ Help businesses differentiate their products in the market place.**
- ❑ Provide legal recourse against competitors who copy or imitate a product's design.**

Geographical Indications (GIs)

What are Geographical Indications (GIs)?

- ❑ Geographical Indications are signs used on products with a specific geographical origin.**
- ❑ They indicate qualities, reputation or characteristics that are unique to the region of production.**
- ❑ Commonly used for agricultural products, spirits, and handicrafts.**

Examples of Geographical Indications

- **Mysore Silk –India.**
- **Channapatna Toys & Dolls – Wooden toys laced with vegetable dyes and safe for children, India.**
- **Kanchipuram Saree – Tamil Nadu, India.**
- **Banganapalle Mango – Andhra Pradesh, India.**
- **Darjeeling Tea – From Darjeeling, India.**
- **Parmesan Cheese – From Parma, Italy.**
- **Phulkari Handicraft – Origin from Punjab, Haryana, Rajasthan,India.**
- **Warli Painting – Maharashtra, Gujarat, Daman & Diu, India.**
- **Malabar Robusta Coffee – Kerala & Karnataka, India.**

Significance of Geographical Indications

- ❑ Protect the reputation and quality of regional products.**
- ❑ Promote economic growth by giving legal recognition to local products.**
- ❑ Prevent misrepresentation by ensuring only products from the specified region can use the GI label.**

IC Layout Design

Introduction to IC Layout Design

- ❑ IC layout design refers to the three-dimensional arrangement of electronic components in an integrated circuit.**
- ❑ These layouts ensure optimal functionality and performance of semiconductor devices.**

Importance of IC Layout Design

- ❑ Critical for modern electronics.**
- ❑ Facilitates innovation in the semiconductor industry.**
- ❑ Provides the foundation for high-speed and efficient circuit performance.**

Significance of IC Layout Design Rights

- ❑ Encourages innovation by protecting R&D investments.**
- ❑ Ensures market exclusivity, allowing companies to reap benefits from their designs.**
- ❑ Provides legal recourse against infringement.**

Challenges in Enforcing IC Layout Design Rights

- ❑ Global protection complexity**
- ❑ Difficulty in detecting infringement due to the small size of components.**
- ❑ Time-sensitive protection since semiconductor technology evolves rapidly.**

Plant Breeder's Rights (PBR)

Introduction to Plant Breeder's Rights (PBR)

- ❑ PBR is a form of intellectual property protection.**
- ❑ Grants breeders exclusive control over new plant varieties they develop.**
- ❑ Rights include selling, reproducing and licensing the plant variety.**

Criteria for PBR Protection

☐ **Distinct**

☐ **Uniform**

☐ **Stable**

Significance of Plant Breeder's Rights

- ❑ Promotes agricultural innovation by protecting new varieties.**
- ❑ Provides breeders with financial incentives to develop improved crops.**
- ❑ Encourages breeders to focus on traits like higher yield, pest resistance and environmental resilience.**

Impact on Biodiversity

- ❑ PBR encourages the development of a wide variety of plant species.**
- ❑ Contributes to biodiversity conservation by protecting plant species across regions.**
- ❑ Helps in developing plants that adapt to changing climates and environments.**

Global Relevance of PBR

- ❑ International Union for the Protection of New Varieties of Plants (UPOV) sets global standards for PBR.**
- ❑ Many countries have adopted PBR legislation, promoting agricultural innovation globally.**
- ❑ Provides breeders with cross-border protection of their varieties.**

Need for Intellectual Property Rights (IPR)

- ☐ **Encouragement of Innovation and Creativity**
- ☐ **IPR and Economic Growth**
- ☐ **Protection of Creative Works and Inventions**
- ☐ **IPR and Promotion of Fair Competition**
- ☐ **Global Trade and International Expansion**
- ☐ **Attracting Investments and Funding**
- ☐ **Protection of Consumer Interests**
- ☐ **Preservation of Cultural Heritage**
- ☐ **Ethical Considerations and Social Responsibility**
- ☐ **Encouraging Entrepreneurial Activities**

Rationale for Protecting IPR

- ❑ IPR offers exclusive rights to inventors, ensuring they benefit from their creations.**
- ❑ Encourages further innovation and contributes to societal development.**
- ❑ Protects the competitive edge of creators and fosters a thriving innovation ecosystem.**

Patents in India

- **Governed by Indian Patent Act (1970), amended in 2005.**
- **Complies with the TRIPS Agreement (Trade-Related Aspects of Intellectual Property Rights).**
- **Indian Patent Office processes patent applications in various fields (e.g., mechanical, pharmaceutical).**

International Patents

- **Patent Cooperation Treaty (PCT): Simplifies international patent filing.**
- **Facilitates protection across multiple countries with a single application.**
- **Each country has its own patent laws, but PCT harmonizes the process.**

Trademarks in India

- **Governed by the Trade Marks Act, 1999.**
- **Managed by the Indian Trademarks Registry.**
- **Protection is granted for 10 years, renewable indefinitely with continuous use.**

International Trademarks

- **Madrid Protocol: Simplifies the process of obtaining trademark protection across multiple countries.**
- **Administered by the World Intellectual Property Organization (WIPO).**
- **Single application covers multiple countries, streamlining international protection.**

Copyrights in India

- **Governed by the Copyright Act, 1957, amended to address technological advances, including the digital age.**
- **Covers literary works, musical compositions, computer programs, films and more.**

International Copyrights

- **Berne Convention: Ensures automatic protection of copyrighted works across member countries.**
- **World Intellectual Property Organization (WIPO) Copyright Treaty (WCT): Governs copyright law in the digital environment, ensuring international protection.**

Industrial Designs in India

- **Governed by the Designs Act, 2000.**
- **Protection granted for 10 years, extendable by 5 more years.**
- **Managed by the Controller General of Patents, Designs and Trademarks.**

International Industrial Design

- **Hague Agreement: Facilitates international registration of industrial designs via a single application.**
- **Administered by the World Intellectual Property Organization (WIPO) for global protection.**

Geographical Indications in India

- **Governed by the Geographical Indications of Goods (Registration and Protection) Act, 1999.**
- **Famous Indian GIs: Darjeeling Tea, Kanjeevaram Silk, Basmati Rice.**
- **GI registration safeguards the identity of traditional products linked to specific regions.**

International Geographical Indications

- **Lisbon Agreement: Provides international protection for GIs, enabling producers to register in multiple countries.**
- **TRIPS Agreement: Establishes global minimum standards for GI protection.**

Trade Secrets in India

- **No specific legislation, but protected through contract law and NDAs. (National Defence Academy)**
- **Indian courts provide remedies for misappropriation or breach of confidentiality.**

International Trade Secrets

- **TRIPS Agreement: Sets global minimum standards for trade secret protection.**
- **Defend Trade Secrets Act (DTSA): U.S. law providing a comprehensive legal framework for trade secret protection.**

PVP in India

- **Governed by the Protection of Plant Varieties and Farmers' Rights Act, 2001**
- **Recognizes the rights of both breeders and farmers, ensuring a balance between innovation and traditional knowledge.**
- **India is a member of the International Union for the Protection of New Varieties of Plants (UPOV), aligning its PVP laws with international standards**

International PVP

- **The International Union for the Protection of New Varieties of Plants (UPOV) provides an international framework for plant variety protection, promoting uniformity and stability in PVP laws across member countries**

Semiconductor Layout Designs in India

- **Governed by the Semiconductor Integrated Circuits Layout-Design Act, 2000.**
- **Provides 10 years of protection for registered designs.**

International Protection

- **TRIPS Agreement: Requires member countries to offer protection for integrated circuit layout designs.**
- **Global framework ensures that layout designs are protected internationally, promoting innovation in the tech industry.**

Royalty:

- ❑ **Definition: A payment made to the owner (licensor) of intellectual property (IP) by another party (licensee) for the right to use, sell or distribute the IP.**

Key Points

- **Applicable to Various IP**
- **License Agreement**
- **Payment Structure**

Types of Royalties:

- **Patent Royalties**
- **Trademark Royalties**
- **Copyright Royalties**
- **Mineral and Natural Resource Royalties**
- **Software and Technology Royalties**

1. Patent Royalties

❑ Definition: Payments made for the right to use an invention protected by a patent.

Key Features

- Monetization of Inventions**
- Revenue-Based Payment**
- Licensing Agreements**

2. Trademark Royalties

- ❑ **Definition: Payments made for the right to use a trademark, including logos, symbols or brand names.**

Key Features

- **Brand Value**
- **Franchising and Licensing**

3.Copyright Royalties

- ❑ **Definition: Payments made for the use of creative works, including books, music, software and films.**

Key Features

- **Reproduction Rights**
- **Public Performance**

4. Mineral and Natural Resource Royalties

❑ Definition: Payments made for the extraction and use of natural resources such as oil, gas, coal and minerals.

Key Features

- ❑ Natural Resource Ownership**
- ❑ Revenue-Based Payment**

5. Software and Technology Royalties

❑ Definition: Payments made for the use or distribution of software.

Key Features

- ❑ Usage-Based Royalties**
- ❑ Custom Licensing**

Royalty Agreements

- ❑ **Royalty payments are defined in a license agreement or royalty agreement, outlining the conditions under which the licensee can use the intellectual property.**

Key Components of a Royalty Agreement

- **Royalty Rate**
- **Territory**
- **Duration**
- **Exclusivity**
- **Payment Terms**

Royalty Rates

- **Definition:** The royalty rate is the percentage or fixed amount the licensee pays to the licensor.
- **Variability:** Rates vary based on intellectual property type, industry standards, market conditions and negotiation between parties.

Factors Influencing Royalty Rates

- **Market Demand**
- **Scope of the License**
- **Innovation Level**
- **Risk and Investment**

Royalty in the International Context

- **Global Significance:** In the globalized economy, royalties are vital for international business. Companies often license their intellectual property to businesses in different countries, maximizing IP value globally.

International Royalty Considerations

- **Tax Implications:** Royalty payments may be subject to taxation based on local laws in different countries.
- **Currency Exchange:** Payments may need to be made in a specific currency, with exchange rate fluctuations impacting payment value.
- **Regulatory Compliance:** Companies must adhere to both domestic and international regulations regarding royalty payments.

Definition of Copyright Legal Right:

Grants creators exclusive control over their work's use, distribution, reproduction and display.

Duration:

Protection lasts for a specified period.

Types of Works Covered by Copyright

- ☐ Literary Works**
- ☐ Musical Compositions**
- ☐ Films and Audio visual Works**
- ☐ Software Programs and Databases**
- ☐ Artistic Works**
- ☐ Architectural Designs**

Importance of Copyright

- ☐ Control and Profit**
- ☐ Legal Protection**
- ☐ Respecting Others' Rights**

Key Features of Copyright

- **Exclusive Rights**
- **Automatic Protection**
- **Duration**
- **Moral Rights**

Protecting Software and Digital Works

- ❑ **Safeguarding Code and Algorithms:** Copyright protects original code, software structure and algorithms.
- ❑ **Licensing and Royalties:** Software can be licensed to others while retaining ownership.
- ❑ **Prevents Unauthorized Copying:** Ensures the original work is not reproduced without permission.

Technical Documentation and Design

- **Copyright Protection Covers:**
 - ❑ **Blueprints**
 - ❑ **Technical Documentation**
 - ❑ **Design Files**
- **Importance Across Fields: Critical in civil, mechanical and architectural engineering to prevent misuse or copying.**

Research Papers and Publications

- ☐ **Retaining Control Over Publications**
- ☐ **Proper Credit**

Avoiding Copyright Infringement

- ☐ Awareness of Copyright Protections**
- ☐ Use of Licensed or Public Domain Works**
- ☐ Legal Risks of Infringement**

Types of Works Protected:

- ☐ **Technical Manuals**
- ☐ **Blueprints and Diagrams**
- ☐ **Software Code**
- ☐ **Designs**

Copyright in India

- ❑ Governed by the Copyright Act of 1957.**
- ❑ Amended multiple times to align with technological advancements and international standards.**

Protected Works under Indian Copyright Law

Literary, Dramatic, Musical and Artistic Works.

Includes engineering-specific works such as:

- ☐ **Technical papers.**
- ☐ **Software.**
- ☐ **Architectural designs.**

Duration of Copyright in India

- Protection lasts for the lifetime of the author plus 60 years after their death.**

Key International Treaties

- **Berne Convention**
- **TRIPS Agreement**
- **WIPO Copyright Treaty**

Copyright Infringement Overview

- ❑ Occurs when a copyrighted work is used without the owner's permission.**
- ❑ Includes reproduction, distribution, performance or display of the work without rights.**

Common Examples of Copyright Infringement

- **Copying software**
- **Plagiarizing research**
- **Unauthorized reproduction of designs**
- **Sharing digital content**

Introduction to Copyright Licensing

- ❑ **Copyright owners can license their works, allowing others to use them under specific conditions.**

Types of Copyright Licenses

- **Exclusive License**
- **Non-Exclusive License**
- **Open Source Licenses**

Definition of a Trademark

- ❑ A recognizable sign, design or expression that identifies the products or services of a particular source.**
- ❑ Acts as a brand identifier for consumers.**
- ❑ Ensures distinctiveness in the marketplace.**

Importance of Trademarks

- ❑ Protects brand identity and reputation.**
- ❑ Helps in building consumer trust and loyalty.**
- ❑ Prevents confusion in the marketplace by
differentiating products.**

Trademark Registration and Enforcement

- ❑ Trademarks can be registered with national or international authorities.**
- ❑ Registered trademarks provide stronger legal protection.**
- ❑ Enforcement involves monitoring and preventing unauthorized use.**

Importance of Trademarks

- ❑ Branding and Identity**
- ❑ Product Design and Marketing**
- ❑ Licensing and Royalties**
- ❑ Startup and Entrepreneurship**

Functions of a Trademark

- **Source Identifier**
- **Brand Protection**
- **Consumer Trust**
- **Legal Protection**

Types of Trademarks

- ☐ Product Trademarks**
- ☐ Service Trademarks**
- ☐ Collective Trademarks**
- ☐ Certification Trademarks**

The Process of Registering a Trademark

- ☐ Conducting a Trademark Search**
- ☐ Filing a Trademark Application**
- ☐ Examination and Publication**
- ☐ Trademark Registration**
- ☐ Maintaining the Trademark**

Benefits of Trademark Registration

- ❑ Legal protection against infringement.**
- ❑ Enhances brand recognition and market presence.**
- ❑ Allows for licensing and monetization through royalties.**

Trademarks in India

- ❑ Trademarks are governed by the Trade Marks Act of 1999, providing comprehensive protection.**
- ❑ Covers a wide range of goods and services.**

Key Features of Trademark Law in India

- **Exclusive Rights**
- **Duration of Protection**
- **Trademark Classes**
- **Infringement and Remedies**

Benefits of Trademarks

- **Build Brand Recognition**
- **Prevent Copying**
- **Expand Internationally**

Definition of a Patent

- ❑ A patent is a legal right granted by a government to an inventor, providing exclusive rights to make, use, sell or distribute the invention.**
- ❑ Typically lasts for 20 years from the filing date.**

Types of Patents

☐ **Utility Patents**

☐ **Design Patents**

☐ **Plant Patents**

Importance of Patents

- ☐ Protection of Innovations**
- ☐ Encouragement of Research and Development**
- ☐ Commercialization Opportunities**
- ☐ Attracting Investment**
- ☐ Market Exclusivity**

The Patent Process

- **Idea Development**
- **Patent Search**
- **Patent Application**
- **Examination**
- **Approval and Grant**

Patent Requirements

- **Novelty**
- **Non-Obviousness**
- **Utility**
- **Full Disclosure**

Patents in India

- ☐ Governing Law**
- ☐ Patent Duration**
- ☐ Patentability Criteria**
- ☐ Application Process**
- ☐ Compulsory Licensing**

Industrial Design

- ❑ Features of shape, configuration, pattern or color applied to an article or product.**
- ❑ Focuses on the visual appeal rather than functional characteristics.**
- ❑ Can be applied to various products: consumer goods, machinery, packaging, etc.**

Importance of Industrial Designs

- **Protection of Aesthetic Innovations**
- **Market Differentiation**
- **Encouragement of Innovation**
- **Commercial Value**

Criteria for Industrial Design Protection

- **Novelty**
- **Originality**
- **Non-Functional**
- **Visual Appeal**

The Process of Registering an Industrial Design

- **Design Development**
- **Conduct a Design Search**
- **Prepare and File an Application**
- **Examination**
- **Publication and Registration**

Duration of Industrial Design Protection

India and Many Other Countries

- ☐ **Protection is valid for 10 years from the date of registration.**
- ☐ **Can be renewed for an additional period, typically up to 15 years in total.**

United States

- ☐ **15-year protection for designs filed after May 13, 2015.**
- ☐ **14-year protection for designs filed before May 13, 2015.**

Industrial Designs in India

- **Governing Law**
- **Registration Process**
- **Duration of Protection**
- **Provisions for Protection**

Trade Secrets

Definition

- ❑ Trade secrets refer to confidential business information that provides a competitive edge.**
- ❑ Vital for businesses in various industries, including engineering.**

Criteria for Trade Secrets

- ❑ Is not generally known or reasonably ascertainable by others.**
- ❑ Provides economic value to its holder because it remains secret.**
- ❑ Is subject to reasonable efforts to maintain its secrecy.**

Trade Secrets

Common Examples

- **Formulas: (e.g., recipe for a soft drink)**
- **Manufacturing processes**
- **Customer lists**
- **Marketing strategies**
- **Software algorithms**

Importance of Trade Secrets

- **Protection of Competitive Advantage**
- **Cost-Effective Protection**
- **Flexibility in Protection**
- **Encouragement of Innovation**

Maintaining Trade Secrets

- **Confidentiality Agreements**
- **Access Controls**
- **Employee Training**
- **Physical Security**
- **Documentation and Marking**

Geographical Indications (GIs)

Definition

- ❑ GIs are a form of intellectual property that identifies goods as originating from a specific geographical area.**
- ❑ The qualities, reputation or characteristics of the goods are attributable to that location.**

Significance

- ❑ Particularly important in agriculture, food production and manufacturing.**
- ❑ Promote regional products and preserve cultural heritage.**

Importance of Geographical Indications

- **Protection of Unique Products**
- **Economic Benefits**
- **Preservation of Cultural Heritage**
- **Market Differentiation**

1. Patents

Application:

- ☐ **Inventions:** Protect new inventions, including processes, machines and compositions of matter.
- ☐ **Pharmaceuticals:** Vital for protecting drug formulations, allowing recovery of R&D costs.
- ☐ **Technology:** Safeguard algorithms, software processes and hardware innovations.

2. Copyrights

Application:

- ☐ **Creative Works:** Protect literary works, music, art, films and software.
- ☐ **Digital Media:** Streaming services use copyrights to protect content from unauthorized use.
- ☐ **Educational Materials:** Textbooks and academic articles ensure authors receive royalties.

3. Trademarks

Application:

- ☐ **Brand Protection:** Protect brand names, logos and slogans to build brand identity and trust.
- ☐ **Franchising:** Maintain quality control and consistency across franchise locations.
- ☐ **E-commerce:** Protect products from counterfeiting and ensure authenticity.

4. Industrial Designs

Application:

- ☐ **Consumer Products:** Protect aesthetic aspects of furniture, appliances and fashion items.
- ☐ **Automotive Design:** Differentiate vehicle aesthetics through industrial design protection.
- ☐ **Packaging:** Unique packaging designs enhance brand recognition and consumer appeal.

5. Geographical Indications (GIs)

Application:

- ☐ **Agricultural Products:** Protect cheese and coffee with qualities linked to their geographical origin.
- ☐ **Cultural Heritage:** Preserve traditional knowledge and practices of specific regions.
- ☐ **Tourism:** Promote tourism by highlighting local products and cultural heritage.

Examples of IPR in Practice

1. Patents

➤ **CRISPR Technology:**

- ❑ **Patented for gene-editing applications in biotechnology, revolutionizing genetics research.**

➤ **Smartphones:**

- ❑ **Various patents protect features like touchscreen technology and camera innovations.**

2. Copyrights

Music Industry:

- ❑ Artists like Taylor Swift and Ed Sheeran use copyright to protect their songs from unauthorized reproduction and distribution.**

Software:

- ❑ Companies like Microsoft and Adobe protect their software through copyright ensuring users pay for licenses.**

3. Trademarks

➤ Coca-Cola:

- ❑ The distinctive logo and bottle design are trademarked, contributing to brand recognition worldwide.**

➤ Nike:

- ❑ The "Swoosh" logo and "Just Do It" slogan are protected trademarks that enhance brand identity.**

4. Industrial Designs

➤ Apple Products:

- ❑ The unique design of Apple devices is protected, contributing to the brand's aesthetic appeal and market success.**

5. Geographical Indications

➤ Darjeeling tea :

- ❑ Only tea produced in the Darjeeling region can be labeled as such ensuring quality and authenticity.**

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PowerPoint and PDF needs. Get the
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